

Madhuri Kapoor Singh vs State Of Nct Of Delhi on 10 September, 2015

IN THE COURT OF SH. SANJEEV JAIN:ADDL.
SESSIONS JUDGE /SPECIAL JUDGE: CBI-03
(PC ACT) SOUTH DISTRICT: SAKET COURTS:
NEW DELHI

Criminal Revision no. 31/2015
UID No. 02406R0147952015
FIR no. 57/12
PS-Hauz Khas
U/s 420/406/34 IPC

1. Madhuri Kapoor Singh
w/o Col. H.P Singh (Retd.)
r/o Aspire 1/802, 7th Floor
Emerald Court, Sector 93 A
Noida, UP

2. Col. H.P Singh (Retd.)
s/o Late Col. Dharam Singh
r/o Aspire 1/802, 7th Floor
Emerald Court, Sector 93 A
Noida, UP

.....Petitioners

Vs.

State of NCT of Delhi

..... Respondent

CR No.31/2015	10.09.2015	Page no. 1/18
Date of filing of revision:	06.05.2015	
Date of arguments	:	28.08.2015
Date of order	:	10.09.2015

Criminal revision petition u/s 397 of Code of Criminal Procedure (in short "Cr.P.C") against the order on charge dated 14.10.2014 and the charges framed on 04.2.2015 u/s 409/420/417/120-B Indian Penal Code (in short "IPC") against the petitioner no.1 and charges u/s 120B IPC r.w 409/420/417 IPC framed against petitioner no.2 in case FIR no.57/2012, PS-Hauz Khas, titled, State

Vs. Madhuri Kapur Singh & Anr. pending in the court of
Ld. MM, Saket courts, New Delhi

Present: Sh. Vikas Arora and Sh. Anish Dhingra,
advocates for petitioners/revisionists.
Sh. Pravin Rahul, Ld. Addl. PP for the State.
Sh. Ashok Aggarwal, Advocate for complainant.

ORDER

Brief facts of the prosecution case:

1 As per report u/s 173 Cr.PC, FIR No.57/12 was registered u/s 420/406/120B/34 IPC in PS□Hauz Khas on the complaint of Ms. Anjali Kapoor Gonsalves resident of Canada (hereinafter at some places referred as "R□/complainant") against her sister Madhuri Kapoor Singh CR No.31/2015 10.09.2015 Page no. 2/18 (herein after at some places referred as A□/petitioner) and Col. (retired) Harender Pal Singh (H.P Singh), the husband of A□ and other unknown persons. The main allegations of the complainant are that she and A□ Madhuri Kapoor Singh are the only children of Late Mr. Partap Kapoor and Late Smt. Saroj Kapoor. The father of complainant and A□, Mr. Partap Kapoor passed away on 04.04.86. Thereafter, the mother of complainant passed away on 07.04.2004 intestate without leaving any will. At the time of death of mother of complainant and A□, family house no.109, SFS, Hauz Khas, New Delhi (hereinafter referred as "disputed property") was in the joint name of mother Smt. Saroj Kapoor and A□ Smt. Madhuri Kapoor Singh. Since, the mother did not leave any will, as per law of intestate succession for Hindus, complainant and her sister A□ jointly inherited 50% mother's share in the disputed property. It is alleged by complainant that she was leaving with her husband in Canada and was not able to manage the property and therefore, she executed a General Power of Attorney (GPA) dated 08.07.2004 in favour of complainant mainly to manage her share in the disputed property; to let out her share; and CR No.31/2015 10.09.2015 Page no. 3/18 to collect the rent and therefore, she entrusted her share in the disputed property to A□ and accordingly A□ had dominion over said disputed property. Later on, complainant came to know that A□ in conspiracy with her husband/A□ falsely claimed herself as the sole legal heir of Late Smt. Saroj Kapoor and sole owner of disputed property and submitted the documents containing these false averments to DDA including indemnity bond and affidavit to convert the disputed property from lease hold to free hold property. The DDA accordingly mutated property as free hold in the name of A□ showing her as sole owner of the property. Thereafter, without knowledge or consent of complainant, A□ in conspiracy with A□ sold the entire disputed property including the share of complainant vide sale deed dated 03.04.2006 to one Sh. Girish Rautela and his mother, Smt. Bhagirathi Rautela. Complainant alleged that A□ and A□ in conspiracy with each other prepared the false documents and submitted the same before the DDA and with dishonest intention falsely claimed A□ as the sole owner of disputed property and executed the sale deed dated 03.04.2006 in favour of Girish Rautela and Bhagirathi CR

No.31/2015 10.09.2015 Page no. 4/18 Rautela and consequently at one end being an agent of complainant misappropriated the disputed property and converted the same to their own use and on the other hand, A□ and A□ in conspiracy with each other sold the property including the share of complainant claiming A□ as the sole owner.

2 After investigation, chargesheet was filed before the court of Ld. MM.

3 Vide order dated 14.10.2014, Ld. MM passed reasoned order and directed to frame charges against A□ and A□. Accordingly, on 04.02.2015, Ld. MM framed charge u/s 409, 420 and 417 alongwith charge u/s 120 B of IPC against A□ Madhuri Kapoor Singh and charge u/s 120□B IPC r.w. Section 409/420 and 417 IPC against A□ H.P Singh. 4 The impugned order dated 14.10.2014 and charge framed on 04.02.2015 by ld. MM are challenged in criminal revision petition mainly on the basis of following grounds/arguments:

4.1 It is submitted by Ld. counsel for petitioner that nowhere, it is the case of the complainant that she was fraudulently or dishonestly deceived or induced by A□ and CR No.31/2015 10.09.2015 Page no. 5/18 A□ to deliver any property/valuable security. In support of his contentions, Ld. counsel mainly relied on the law laid down in the case of Mohd. Ibrahim & Ors Vs. State of Bihar and another (2009) 8 SCC 751. Ld. Counsel argued that when sale deed is executed conveying property claiming ownership thereto, it will be for the purchaser under such sale deed to allege that the vendor has cheated him by making false representation of ownership and fraudulently induced him to part with sale consideration. But in this case, the complaint is not filed before police by purchaser. Initially purchaser was made a co□ accused. It was submitted by ld.

counsel for petitioners that essential ingredient of offence u/s 420 IPC are not made out.

4.2 In impugned order dated 14.10.2014, Ld. MM observed that:

" As far as section 420 IPC is concerned the necessary ingredient are cheating by deception and delivery of property. In the present case reliance is placed upon Mohd. Ibrahim Vs. State whereby it is held that in almost all the circumstances, complainant was not misled and no cheating was done with him even if property belongs to him was sold to someone else by claiming that property belongs to the appellant. In the present case CR No.31/2015 10.09.2015 Page no. 6/18 however situation is bit different. In the case of Mohd. Ibrahim, the purchaser was co□accused but in the present case prosecution has made the purchaser as a witness. He is also an affected party. Thus accused Madhuri Kapoor is prima facie liable for committing cheating with Girish Rautela as deception was played upon him and he was on the basis of deception made to pay purchase money. Thus accused Madhuri Kapoor is liable to be proceeded against u/s 420 IPC for cheating with Girish Rautela.

Further, in the present case false affidavit was given in the DDA by declaring accused is only daughter and thereby caused the Govt official to give NOC to her. Therefore, brining her conduct within the realm of section 417 IPC."

4.3 Careful perusal of order dated 14.10.2014 revealed that Ld. MM has distinguished the case of Mohd. Ibrahim Vs. State on the ground that in that case purchaser was co-accused but in the present case purchaser has been made as a witness. Ld. Counsel for petitioners argued that present case is not initiated on the complaint of purchaser Girish Rautela and Bhagirathi Rautela and even in his statement u/s 161 Cr.PC, Sh. Girish Rautela does not allege that he was deceived or cheated by accused persons. Therefore, the findings of ld. Trial court in this regard are not sustainable.

CR No.31/2015 10.09.2015 Page no. 7/18 On the contrary, Ld. Addl. PP for the state and ld. counsel for complainant controverted the submissions that statement of Sh. Girish Rautela u/s 161 Cr.PC clearly reflects that accused persons claimed that A-1 was the only legal heir of Smt. Saroj Kapoor and was the sole owner of the property and he purchased the property on the basis of documents shown to him. It was also contended by Ld. Addl. PP that there is no legal bar for proceedings u/s 420 IPC, if the victim is not a complainant but he/she is only a witness of the prosecution.

4.4 After careful consideration of the respective submissions, material on record and statement of Sh. Girish Rautela u/s 161 Cr.PC it is prima facie established that disputed property was sold by A-1 to the said purchasers vide sale deed dated 03.04.2006 without disclosing the true facts to the purchasers and by claiming A-1 as the sole owner of the disputed property. Statement of Sh. Girish Rautela u/s 161 Cr.PC clearly reflects that he was kept in dark and deceived by accused persons. Therefore, on the basis of false documents he purchased disputed property and handed over the sale consideration to A-1. The entire facts and CR No.31/2015 10.09.2015 Page no. 8/18 circumstances clearly reflects dishonest intention of accused persons; misrepresentation of facts and inducement to purchasers to purchase the entire disputed property including the share of complainant for a consideration. Prima facie from the statement of Sh. Girish Rautela and trial court record, in my opinion essential ingredient of offence u/s 420 IPC are prima facie established that accused persons committed offence u/s 420 IPC against purchaser of disputed property. I do not find any substance in the contention of Ld. counsel for petitioners that purchaser is not the complainant in this case. Machinery of criminal law may be moved by any person unless there is specific bar under the law.

4.5 Similarly, Ld. MM has observed that offence u/s 417 IPC is also made out against A-1 as the false affidavit was given by A-1 to DDA by declaring herself as the only legal heir of Smt. Saroj Kapoor and thereby she misrepresented before the government officers to give NOC to her. After careful consideration, I do not find any error in the findings of Ld. Trial court in this regard.

4.6 Ld. Counsel for petitioner further argued that charge u/s 409 IPC is not made out because neither there was CR No.31/2015 10.09.2015 Page no. 9/18 entrustment of property nor immovable property could be entrusted nor it was a business transaction within the meaning of section 409 IPC and therefore the essential ingredient of offence u/s 405 or 406 or 409 IPC are not made out. Ld. counsel submitted that as per the prosecution case, at the maximum, complainant and A-1 were the joint owners of disputed property. In case of joint ownership, portions of complainant and A-1 were not specific. Therefore, position of joint owners was similar to the position of partners in a

partnership firm. Ld. counsel cited number of judgments in support of his arguments including Bhuvan Moha Dass Vs. Surender, AIR 1951 Calcutta 69 (FD), Velji Raghav Ji Patel Vs. State of Maharashtra, AIR 1965 SC (1433) and Ila Juneja Vs. State 2004 (72) DRJ 207.

4.7 In respect of argument of ld. counsel pertaining to the offence u/s 409 IPC, Ld. MM has observed in impugned order dated 14.10.2014 that case of Velji Raghav Ji Patel (supra) and other cases cited by ld. counsel for accused were related to partnership firm wherein it was held that partners cannot be held liable for misappropriation as there is undefined ownership. Ld. MM observed that these cases CR No.31/2015 10.09.2015 Page no. 10/18 related to the facts of partnership firm were not applicable because in the case of co-owners or joint owners the share is defined. Prima facie as per the statement of complainant and documents on record, complainant and A□ were the joint owners in respect of 50% share of their mother Late Smt. Saroj Kapoor. In other words, in the given facts, complainant was the joint owner of atleast 25 % share of the entire disputed property. In these facts, in my opinion, joint ownership of complainant and A□ cannot be equated with the position of partners in a partnership firm and therefore, the observations of Ld. MM does not suffer from any error in this regard.

4.8 Another contention of Ld. Counsel for petitioner was that property in dispute was immovable property which could not be entrusted to A□ by complainant and therefore, as there was no entrustment of property, essential ingredient of offences u/s 405 or 406 or 409 are not made out. In this regard, in impugned order dated 14.10.2014, Ld. MM observed that "no definition of criminal misappropriation given in IPC. Section 403 IPCcriminal mis appropriation for immovable property. The only CR No.31/2015 10.09.2015 Page no. 11/18 word used in section 405 IPC is property, movable cannot be imported and it cannot be said that criminal mis appropriation can be done with respect to movable property only in the absence of specific word being used. Hence, as the property was entrusted to accused and she sold the property thereby mis appropriate the amount, prima facie offence u/s 406 IPC is made out against accused. In the present case, GPA was given to her to deal with property of complainant and it is also prima facie clear that she was acting as an agent for complainant with respect to the property. Hence, case u/s 409 IPC is made out".

4.9 The chapter of "Criminal mis appropriation of property in Indian Penal Code starts with section 403 and ends at section 404 IPC". Section 403 IPC is related to dishonest misappropriation of movable property. In this section the legislatures has specifically used "movable property". Thereafter, in section 404 IPC related to dishonest misappropriation of property possessed by deceased person at the time of death. Legislatures instead of movable CR No.31/2015 10.09.2015 Page no. 12/18 property used the word "property". Similarly, u/s 405 IPC related to criminal breach of trust, word "property" has been used. There had been difference of opinion between different High Courts whether offence u/s 404 IPC is applicable only on movable property or the same is applicable on movable as well as immovable property. In the case of R.K. Dalmia etc Vs. Delhi Administration, AIR 1962 SC 1821, Hon'ble Supreme Court while dealing with all other cases authoritatively held that "there is no reason to restrict word "property" to "movable property" only. Therefore, in my opinion, Ld. MM has rightly observed that word "movable" cannot be imported alongwith "property" in section 405 IPC.

4.10 In the present case, prosecution has filed a General Power of Attorney dated 08.07.2014 executed by the complainant in favour of A□ which clearly reflects that complainant was residing in Canada and therefore, she executed GPA in favour of her sister (A□) to look after the property; to take steps before different government agencies; to let out the property; and to collect the rent. The contents of GPA dated 08.07.2004, prima facie reflects that property CR No.31/2015 10.09.2015 Page no. 13/18 was infact entrusted by complainant to A□ for the purpose mentioned in GPA. It was under the dominion and control of A□. Therefore, in my opinion, there is no merit in the contention of ld. counsel for petitioner that the disputed property was never entrusted to the accused. 4.11 Ld. Counsel for petitioner further argued that offence u/s 409 IPC is related to the case where property is entrusted to the public servants or the same is entrusted in the way of business to a broker, merchant, attorney or agent etc. Ld. counsel contended that there was no business or commercial transaction between complainant and A□ and therefore, essential ingredient of section 409 IPC is not made out. 4.12 GPA dated 08.07.2004 reflect that A□ was appointed as GPA by complainant to let out the disputed property and to collect rent etc from the tenants. In my opinion, letting out property to tenants is also a commercial or business activity. Therefore, the arguments of ld. counsel for petitioner in this regard appears to be without any merit.

4.13 Ld. counsel for petitioner further argued that in order to establish offence of criminal conspiracy u/s 120 B IPC there should be prima facie evidence that the accused CR No.31/2015 10.09.2015 Page no. 14/18 persons entered into express or implied agreement either to commit an illegal act or to commit legal act by illegal means. Therefore, "meeting of mind" between accused persons is essential ingredient of offence of criminal conspiracy punishable u/s 120 B IPC.

4.14 It is settled position of law that generally criminal conspiracies are hatched by accused persons in secretive and clandestine manner to avoid its detection. Therefore, in most of the cases it is difficult to produce direct evidence of "meeting of mind" or the guilty intention of accused persons. The criminal conspiracy may be gathered from the facts and circumstances of a case. In the present case, prima facie there is sufficient evidence on record that A□ and A□ (who was the husband of A□) were residing together as husband and wife in Noida; A□ was aware about true facts and circumstances; he actively took part in the entire transactions of preparation of false documents; proceedings before DDA and execution of sale deed of disputed property by A□. 4.15 PW Raj Kumar Mahendra who was the property dealer/broker in respect of sale of disputed property stated in this statement u/s 161 Cr.PC that A□ was throughout present CR No.31/2015 10.09.2015 Page no. 15/18 in the preparation of documents pertaining to the sale of property which clearly reflects the active involvement of A□ with A□ in the commission of offence.

4.17 Ld. Counsel for petitioner further argued that in respect of disputed property a civil suit is pending before the court. Ld. counsel submitted that it is the case of civil nature which has been given the colour of criminal prosecution just to pressurize the accused persons to concede the unlawful demands of the complainant. Ld. counsel contended that in a case of civil nature, criminal proceedings is mis□ise of process of law. In the case of Mohd. Ibrahim Vs. State of Bihar (supra) it was held that "several dispute of civil nature may also contained ingredient of criminal offence and if so will have to be tried as criminal offences even if they amount to civil dispute." Every case has its own facts and circumstances. Sometime, dispute of purely civil nature are intentionally converted

into criminal offence without sufficient material. In some cases of civil dispute apparently there may be sufficient material to establish commission of offences. In my opinion, in the present case, prima facie there is sufficient material on record that it is not only a civil CR No.31/2015 10.09.2015 Page no. 16/18 dispute but series of criminal offences have committed by accused persons. Therefore, in my opinion, contention of ld. counsel for petitioner in this regard is without any substance. 4.18 Ld. Counsel for complainant submitted that there is no error in the charge framed by ld. MM except that instead of charge u/s 417 IPC , charge u/s 420 IPC should have been framed for fraudulently deceiving officers of DDA. In my opinion, there is no reasonable ground to interfere with the findings of ld. Trial court in this regard.

4.19 It was also argued by ld. counsel for petitioner that as per the established principle of law offence of criminal breach of trust defined u/s 405 IPC and offence of cheating cannot be simultaneously framed. Essential ingredient of offence of criminal breach of trust is "entrustment of property" whereas essential ingredient of offence of cheating is "mis representation". As far as, legal proposition is concerned, ld. counsel for petitioner is correct. But, each case has its own peculiar facts. In the present case, accused persons have committed offence of criminal breach of trust against complainant Smt. Anjali by mis appropriating the property entrusted to A□ and cheated purchaser Sh. Girish CR No.31/2015 10.09.2015 Page no. 17/18 Rautela and Smt. Bhagirathi Rautela by deceiving or mis representing them about the sole ownership of A□. Therefore, in this case both the offences i.e u/s 420 and 409 IPC are made out against accused persons.

5 In view of the above discussion, in my view there is no merit in the revision petition filed by the petitioners, therefore, revision petition is dismissed. Copy of this order be sent to Ld. Trial court alongwith TCR. Parties to appear before Ld. Trial court on the date already fixed by ld. trial court. File be consigned to record room.

Announced in the open court
on 10.09.2015

(Sanjeev Jain)
ASJ/Special Judge (PC Act)
(CBI-3), South, Saket Court
New Delhi